

Court No. - 29

Case :- WRIT - C No. - 36116 of 2024

Petitioner :- Smt. Nisha

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Amar Pratap Singh, Ishwar Chandra Srivastava

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Kaushlendra, learned Advocate holding brief of Sri Ishwar Chandra Srivastava,, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent No. 4, the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Gramin Sikandara, District Agra, Sri Tushar Krishnani, learned Advocate holding brief of Sri Gaurav Tripathi, learned counsel appearing for the respondent No. 3, the Dakshinanchal Vidyut Vitaran Nigam Limited and Torrent Power Limited, Agra, and the learned Standing Counsel appearing for the respondent Nos. 1 and 2 and perused the record.

2. The present petition has been filed seeking a direction to the respondent(s) neither to initiate any proceeding against the petitioner pursuant to the recovery letter issued by the respondent No. 3, nor to adopt any coercive measure against him in respect thereof.

3. After hearing the parties, we find that the petitioner is disputing the correctness of the amount that is being demanded by the respondent(s).

4. Learned counsel for the respondent(s) submits that for redressal

of such grievance, the petitioner has an effective alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

5. Learned counsel for the petitioner could not dispute the same.

6. Accordingly, the petition stands **disposed of** with liberty to the petitioner to avail the aforesaid statutory remedy, if so advised.

Order Date :- 21.11.2024

Arun K. Singh